

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicole Weinstock	Team: Team # 3	CCRB Case #: 200916431	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/20/2009 7:20 PM	Location of Incident: § 87(2)(b) [REDACTED]	Precinct: 41	18 Mo. SOL 4/20/2011	EO SOL 4/20/2011	
Date/Time CV Reported Wed, 10/21/2009 2:01 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/21/2009 2:01 PM		
Complainant/Victim	Type	Home Address			
[REDACTED]	[REDACTED]	[REDACTED]			
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Mervin Bennett	00255	920019	041 PCT		
2. SGT Edgar Padilla	02988	895127	041 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Joseph Gelardi	16776	932704	041 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A.SGT Edgar Padilla	Force: Sgt. Edgar Padilla used physical force against § 87(2)(b) [REDACTED]			[REDACTED]	
B.SGT Mervin Bennett	Abuse: Sgt. Mervin Bennett searched the car in which § 87(2)(b) [REDACTED] was an occupant.			[REDACTED]	

Case Summary

On October 21, 2009, § 87(2)(b) filed this complaint via telephone with the Internal Affairs Bureau (IAB) generating log § 87(2)(b). This complaint was forwarded to the CCRB on November 2, 2009. On October 21, 2009, § 87(2)(b) also filed this complaint with the CCRB via telephone.

On October 20, 2009, at approximately 7:20 PM, § 87(2)(b) went outside to remove the license plates from her car, which was parked on § 87(2)(b) in the Bronx, because the car was being repossessed. § 87(2)(b) turned on her car's radio and left the driver's door open. She began to remove the front license plate when a patrol car with two officers pulled up alongside her vehicle. The first officer, a black male, who was approximately 5'6" tall, over 200 pounds, had a muscular and chubby build, and was the passenger, stated, "Ma'am, you're going to have to turn that music down." This officer was later identified as Sgt. Mervin Bennett of the 41st Precinct, tax registry number 920019. The second officer, a white male, who was approximately 5'9" tall, 190 pounds with a low haircut, some acne, and was the driver, was later identified as Sgt. Edgar Padilla of the 41st Precinct, tax registry number 895127. § 87(2)(b) stated, "OK," got up, closed the door and turned the music down. She then stated, "Thanks officers. Have a good night." The officers then got out of the car and Sgt. Bennett asked § 87(2)(b) for her identification. She reached into her pocket to get it and hand it to Sgt. Bennett. Sgt. Padilla then pushed § 87(2)(b) against her car while Sgt. Bennett searched § 87(2)(b) car. Sgt. Padilla held § 87(2)(b) with one hand and frisked her. Sgt. Padilla turned her around and slammed § 87(2)(b) against her car and continued to frisk her. § 87(2)(b) explained to Sgt. Padilla that she had a cardiac defibrillator. Sgt. Padilla ignored this and continued to frisk § 87(2)(b).

During the frisk, a second police car arrived with PO 3, a Hispanic male, with a slim build and glasses, and "PO Gevandl," tax registry number 932704. A check of CTS showed that based upon the tax registry number provided, "PO Gevandl" is actually PO Joseph Gelardi. Sgt. Padilla pushed § 87(2)(b) towards PO 3 and PO Gelardi. PO 3 placed § 87(2)(b) in handcuffs and in the back of the second vehicle. Someone eventually informed § 87(2)(b) that she was being arrested. She asked why and was told that she would find out when she got back to the precinct. § 87(2)(b) asked PO 3 and PO Gelardi for the names and badge numbers of Sgt. Bennett and Sgt. Padilla. She was told that she could ask the lieutenant when she got to the precinct for that information and that they were supervisors. At the precinct, § 87(2)(b) was searched by an unidentified female officer. The lieutenant informed § 87(2)(b) that the officers she interacted with were Sgt. Padilla and Sgt. Bennett but would not provide their badge numbers as well. § 87(2)(b) was issued two summonses for disorderly conduct. A check of CTS showed Sgt. Edgar Padilla and Sgt. Mervin Bennett assigned to the 41st Precinct. § 87(2)(g)

On October 23, 2009, and October 29, 2009, please call letters were sent to § 87(2)(b). On October 26, 2009, an attempt was made to contact § 87(2)(b). A recording was played stating that the number was no longer in service. On the same date, a White Pages search for § 87(2)(b) was returned with negative results. On October 28, 2009, a Lexis-Nexis check for § 87(2)(b) did not provide a telephone number. On October 29, 2009, § 87(2)(b) contacted the CCRB and an interview was scheduled for November 10, 2009. § 87(2)(b) stated that the telephone number she provided was in service. On November 10, 2009, § 87(2)(b) failed to arrive at the CCRB for her scheduled interview. She did not call beforehand to cancel or reschedule. On the same date, a missed appointment letter was sent to § 87(2)(b). On November 12, 2009, § 87(2)(b) was contacted and an interview was scheduled for November 17, 2009. On November 17, 2009, § 87(2)(b) did not arrive at the CCRB for her scheduled interview. She did not call beforehand to cancel or reschedule. On the same date, a check of the New York City Department of Correction Inmate Lookup System was conducted and § 87(2)(b) was not incarcerated.

As of the writing of this report, § 87(2)(b) has failed to contact the CCRB and none of the letters she was sent have been returned as undeliverable. § 87(2)(g)

Team: _____

:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date